

DeLONG v BAKER, et al

25CF15296

PLAINTIFF'S MOTION TO COMPEL DISCOVERY

This is a dispute involving the alleged failure to disclose certain defects as part of a real estate sale brought by Justin Delong ("Plaintiff") against Clayton Baker and Notasha Baker ("Defendants").

Plaintiff's Motion to Compel responses to request for production of documents is unopposed.

I. Procedural History

On September 20, 2025, Plaintiff served on Defendants a set of discovery requests entitled Request for Production of Documents, Set One, via certified U.S. Mail, addressed to their last known mailing address. (Declaration of Justin Delong ("Delong Decl.") ¶ 2, Ex. A.) Responses were due thirty-five days thereafter, on October 25, 2025. (Code Civ. Proc. § §2030.260(a) and 1013(a).) As of the filing of the motion on October 28, 2025, Defendants had not responded.

II. Legal Standard and Discussion

A. Motions to Compel

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve

that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

A party moving to compel initial responses under these sections is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiff properly served Defendants with the discovery motions via certified mail. Defendants have failed to provide responses to the discovery and have failed to file any opposition to the motion.

Accordingly, Plaintiff's motion to compel responses to Request for Production of Documents – Set One is **GRANTED**. Defendants are ordered to provide verified, code-compliant responses, without objection, within fifteen Court (15) days of this Order, i.e., by 5:00 p.m. on December 30, 2025.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Proposed Order, modified as necessary to conform to this Ruling.